

		The statute of limitations period for an action for relief on the ground of fraud or mistake is three years. (Code Civ. Proc., § 338(d).) “The cause of action in that case is not to be deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.) In order for a claim to be barred by the statute of limitations, the defect must clearly appear on the face of the complaint; “ ‘it is not enough that the complaint shows merely that the action may be barred.’ ” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316.) In the proposed first amended complaint, the reformation cause of action alleges that Plaintiff was not aware of the mistaken address in the endorsement and the mistake does not truly express the intention of the parties. These allegations do not establish on the face of the proposed first amended complaint that the reformation cause of action is barred by the applicable statute of limitations. Thus, pursuant to the policy of great liberality in permitting amendments absent prejudice, leave to amend is GRANTED. Plaintiff is ORDERED to file and serve its amended complaint within 10 days of the date of this order. Defendant’s Motion for Judgment on the Pleadings is DENIED as MOOT in light of the Court’s granting Plaintiff leave to amend. Plaintiff to give notice.
105	De La Torre v. CalOptima Health, 2025-0146323	Motion to be Relieved as Counsel – GRANTED Attorney Bijan Mohseni seeks an order relieving them from acting as counsel of record for Plaintiff Melissa De La Torre. Motions to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) are governed by California Rules of Court, Rule 3.1362. All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney

		Bijan Mohseni appears to demonstrate good cause for granting the motion based on the allegations that there has been a breakdown in the attorney-client relationship, and the attorney can no longer represent Plaintiff's interest in this matter. Additionally, all required judicial counsel forms (MC-051, MC-052, and MC-053) have been utilized and properly served. (Cal. Rules of Court, rule 3.1362(a)-(d).) Plaintiff was served by mail at their last known address. The Motion to Be Relieved as Counsel of Record is GRANTED. Court will interlineate the proposed order (ROA 97) to include MSC and Trial dates. Attorney is relieved as counsel of record upon filing the proof of service of the order. Moving party to give notice.
106	Mann v. Paley, 2025-01521967	Motion for Leave to File Amended Complaint – GRANTED Plaintiff Dianna Mann moves pursuant to Code of Civil Procedure sections 473 and 576 to file a First Amended Complaint. Defendants Catherine E. Paley and Peter A. Paley oppose the motion. The court may allow a party to amend any pleading in furtherance of justice, even after trial has begun. (Code Civ. Proc., §§ 473(a), 576.) Courts liberally allow amendments to permit lawsuits to be determined on their merits. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939; Desney v. Wilder (1956) 46 Cal.2d 715, 751.) “It is well established that ‘California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.’ (Board of Trustees v. Superior Court (2007) 149 Cal.App.4th 1154, 1163.)